By Speed-Post

CM-13011/192/2022-LAW-HO-CPCB-HO Part(2) – (C. No. 19639) 17259-17294 **February 04, 2026**

To,

The Member Secretary,
(All SPCBs/PCCs).

Sub: Comments on Draft SOP in compliance of Hon'ble NGT Order dated 08.10.2025 in O.A. No. 820/2022 (Naveen Kumar vs. Union of India & Ors.) – reg.

Sir/Madam,

Kindly refer to the Hon'ble NGT Order dated 08.10.2025 in O.A. No. 820/2022 (Naveen Kumar vs. Union of India & Ors.), wherein CPCB was directed to prepare an SOP regarding expedite disposal of Authorisation/CTE/CTO applications, proactive compliance measures, and grievance redressal mechanisms.

Accordingly, an Expert Committee was constituted vide Office Order dated 08.12.2025, and the draft SOP has been finalised. The same is enclosed herewith for your comments/suggestions, if any, within 10 days of issuance of this letter.

The comments/suggestions may be forwarded through email to bmw.cpcb@gov.in and roraon.cpcb@nic.in, as well as in hard copy.

Yours faithfully,

Runa

(Runa Oraon)
Divisional Head
Waste Management Division -I

Encl: As above

Standard Operating Procedure for Expeditious disposal of applications for grant of Consent & Authorization by SPCBs/ PCCs, adoption of proactive approach for ensuring compliance with environmental laws/norms/regulations by SPCBs/PCCs, and creating web-portal for redressed of grievances and also to upload the information regarding the same by them

CENTRAL POLLUTION CONTROL BOARD

(Ministry of Environment, Forest and Climate Change)
East Arjun Nagar, Delhi – 110 032

February 2026

Standard Operating Procedure for expeditious disposal of applications for grant of Consent & Authorization by SPCBs/ PCCs, Adoption of proactive approach for ensuring compliance with environmental laws/norms/regulations by SPCBs/PCCs, and Creating web-portal for redressal of grievances and also to upload the information regarding the same by them

1.0 Background

The Hon'ble National Green Tribunal (NGT), New Delhi, in Naveen Kumar Vs Union of India & Ors. (Original Application No. 820/2022), concerning alleged violations of environmental norms by Shivalik Hospital , Una , Himachal Pradesh, vide order dated **08.10.2025** directed the Central Pollution Control Board (CPCB) to frame a Standard Operating Procedure (SOP) to ensure time bound, transparent and technology driven disposal of applications relating to Consent to Establish (CTE), Consent to Operate (CTO) under the Water (Prevention & Control of Pollution) Act, 1974 , the Air (Prevention & Control of Pollution) Act, 1981 and Authorization within prescribed periods by the State Pollution Control Boards (SPCBs) and Pollution Control Committees (PCCs). The Hon'ble Tribunal further emphasized the adoption of a proactive approach for enforcement of environmental regulations instead of reaction based compliance and to create web-portal for Public disclosure of pending cases and reasons for delay, redressal of grievances & uploading the information regarding the same. The relevant para of the said order are as below:

> "*96. Incidents of such unreasonable delays in disposal of applications for grant of authorization/CTE/CTO by SPCBs/PCCs abound and also surface in numerous cases coming up before this Tribunal which warrant taking of appropriate remedial measures.*
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> *97. We are of the considered view that applications for grant of authorization and CTE/CTO need to be disposed of within statutorily prescribed periods of 90 days under Rule 10 (3) of BMWM Rules, 2016 and four months under Section 25 (7) of the Water Act, 1974 as long unreasonable delay in disposal of applications for grant of authorization and CTE/CTO leads to corruption and also other complications and remedial measures are required to be taken to prevent the same. Accordingly, CPCB is directed to* ***prepare SoP*** *and to* ***issue appropriate directions*** *for disposal of applications for authorization and grant of CTE/CTO by SPCBs/PCCs in time bound manner within the prescribed periods* ***and*** *also for uploading of the information on website of the concerned SPCB/PCC and on the website of the concerned Regional Office regarding pendency of the applications beyond the prescribed period and reasons for delay.*
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> *…*
>
> *100. Accordingly, in exercise of powers under Sections 14 and 15 of the NGT Act, 2010, CPCB is directed to* ***prepare SoP*** *and* ***issue appropriate directions*** *to SPCBs/PCCs of all the States and UTs for*
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> *(i)* ***expeditious disposal of applications for grant of authorization/CTE/CTO*** *by SPCBs/ PCCs within prescribed periods;*
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> *(ii)* ***adoption of Proactive approach for ensuring compliance with environmental laws/norms*** *by issuing appropriate circulars, letters, notices and making requisite inspections, giving requisite directions for specific remedial measures with specific timelines and (by) pass(ing)*

appropriate orders, including conditional/absolute closure orders to the concerned Project Proponents as may be required; and

(iii) ***to create web-portal for redressal of grievances*** *and to look into complaints regarding violation of environmental laws/norms made with relevant details and supporting material and to take requisite remedial action on the same in accordance with law and also to inform the complainant about the action taken on the complaint with specific information regarding availability of legal remedy of appeal/revision against the same* ***and also to upload the information regarding the same*** *on the web-portal.*

2.0 Prescribed period and SOP for expeditious disposal of Applications for grant of Consent and Authorization by SPCBs/ PCCs

The Ministry of Environment, Forest and Climate Change (MoEF&CC) has notified the following guidelines for Grant, Refusal and Cancellation of Consent under the Section 25 & 27 of the Water (Prevention and Control of Pollution) Act, 1974 and the Section 21 of the Air (Prevention and Control of Pollution) Act, 1981, as follow:

1. Control of Water Pollution (Grant, Refusal or Cancellation of Consent) Guidelines, 2025 (Notified on 30.01.2025 and amended on 23.01.2026)
2. Control of Air Pollution (Grant, Refusal or Cancellation of Consent) Guidelines, 2025 (Notified on 29.01.2025 and amended on 23.01.2026)

Further, the MoEF&CC has also issued notification on exemption of certain category of industrial plants from the Consent mechanism.

1. Notification G.S.R. 761 (E) dated 17.10.2025 on exemption of certain category of industrial plants from the Consent mechanism under the Air (Prevention and Control of Pollution), Act, 1981
2. Notification G.S.R. 762 (E) 17.10.2025 on exemption of certain category of industrial plants from the Consent mechanism under the Water (Prevention and Control of Pollution), Act, 1974

The above Guidelines dated 30.01.2025 and 29.01.2025, as amended on 23.01.2026, prescribe that a single-step procedure shall be adopted for granting **Consent** under the Water (Prevention & Control of Pollution) Act 1974 and the Air (Prevention & Control of Pollution) Act 1981 along with **Authorization** under various Waste Management Rules notified under the Environment(Protection) Act,1986 as may be applicable. In order to ensure expeditious disposal of applications for the Consent, the above Guidelines prescribe the maximum period for disposal of the Application (grant or refusal) as below:

Disposal of Applications

S. No.	Application	Specified Period (in days)		
		Red	Orange	Green
1	Grant or refusal of Consent to establish	60	45	30
2	Grant or refusal of Consent to operate, first time	90	60	30
3	Grant or refusal of renewal of Consent or expansion or amendment	90	60	30

The above Guidelines dated 30.01.2025 and 29.01.2025, as amended on 23.01.2026, further prescribe that in case the application for consent is not decided by the State Board within the specified period, the case shall be referred to State Level Monitoring Committee constituted under the Guidelines dated 30.01.2025 and 29.01.2025 , as amended on 23.01.2026, and the Member Secretary of the State Board shall present the case before the Committee, the Committee shall dispose of the application within thirty days from the date of its receipt. Further, while deciding on such application, the Committee shall look into causes of delay in grant or refusal of the consent and recommend appropriate disciplinary action where the reasons of delay are not justified and the State Board shall comply with such decision. The Committee may also recommend presenting the case for contravention of the Act before concerned adjudicating officer under section 45B of the Act.

Thus the p**rescribed period and** SOP **for** expeditious disposal of applications for the **Consent** under the Water (Prevention & Control of Pollution) Act 1974 (hereinafter referred as Water Act 1974) and the Air (Prevention & Control of Pollution) Act 1981 (hereinafter referred as the Air Act 1981) and the provision for a single-step procedure to be adopted for granting **Consent** under the Water Act 1974 and the Air Act 1981 along with **Authorization** under various Waste Management Rules notified under the Environment(Protection) Act,1986 as may be applicable is already laid down under the above guidelines dated 30.01.2025 and 29.01.2025 , as amended on 23.01.2026.

Under the above Guidelines dated 30.01.2025 and 29.01.2025, as amended on 23.01.2026, CPCB has been entrusted with the responsibility of developing an online portal for implementation of the said guidelines, which shall act as a single point data repository with respect to management and implementation of the aforesaid guidelines. Accordingly, a Unified Consent Management and Authorization System (UCAMS) for grant, refusal or cancellation of the Consent under the Water Act, 1974 and the Air Act, 1981, and the Authorizations various Waste Management Rules notified under the Environment(Protection) Act,1986 as may be applicable has been developed.

3.0 Adoption of proactive approach by SPCBs/ PCCs for ensuring compliance with environmental laws/norms/regulations

CPCB has already issued direction under Section 18(1)(b) of the Water (Prevention & Control of Pollution) Act, 1974 and the Air (Prevention & Control of Pollution) Act, 1981 on **12.12.2019** and **12.02.2025** regarding inspection frequency for environmental surveillance of industries. As per the directions for environmental surveillance, industries are required to be inspected preferably at the frequency as mentioned below, unless there are reasons for exception for any particular State:

Sl. No.	Industrial Category/Facility	Frequency of Mandatory inspection for Environmental Surveillance*
1.	Highly Polluting 17 Category Industries	3 months
2.	Red Category (Other than 17 category industries)	6 months
3.	Orange Category Industries	1 year
4.	Green Category Industries	2 year
5.	CBWTF/ CHWSRDF/ CMSWTDF/ CETP/ STP	3 months

(*States/UTs following more aggressive timelines can continue to do so)

In order to prevent emissions/discharges exceeding the prescribed limits and strengthen the compliance monitoring, in addition to periodic inspections, SPCBs/PCCs shall respond proactively to:

- Alerts from OCEMS/other real-time monitoring systems indicating non-compliance (exceedance of emissions, leak detection, bypass flow, etc.) as per online automatic alert generation protocol for OCEMS communication issued vide CPCB's direction dated 12.08.2025 to all SPCBs/PCCs under section 18(1) (b) of the Water (Prevention & Control of Pollution) Act, 1974 and the Air (Prevention & Control of Pollution) Act, 1981
- Complaints from citizens, NGOs, local bodies, media, or other stakeholders.
- Incidents like chemical leaks, fire, accidents, environmental hazards, public health threats etc.
- Directions or orders from authorities, as applicable.

The SPCBs/PCCs shall periodically place the information about existing and new/amended environmental rules/guidelines/standards/SOPs/Policy of State/UT Govt., OCEMS requirements, EPR Obligations, Waste Management Obligations, etc. including

the best practices for pollution prevention, resource conservation, waste reduction, etc., on the Board's website to disseminate the information for project proponents, associations, stakeholders and public,

4.0 Creating web-portal for management by SPCBs/PCCs and redressal of Grievance and uploading the information regarding the same

Centralised Public Grievance Redress and Monitoring System (CPGRAMS) operates as a single integrated portal connecting all Ministries/Departments of the Government of India, with role-based access provided to concerned authorities. CPGRAMS is a 24x7 online platform that enables citizens to lodge grievances with public authorities on matters relating to service delivery. The platform is accessible through the CPGRAMS web portal, a standalone mobile application, and the UMANG platform. Each grievance is assigned a unique registration number, enabling online tracking. CPGRAMS also provides a feedback and appeal mechanism, wherein an appeal is enabled if the complainant records feedback as "Poor."

The Central Pollution Control Board (CPCB) addresses public grievances and complaints relating to violations of environmental laws, rules, and norms received in the CPGRAMS.

In addition, CPCB has developed the SAMEER App to enhance public awareness on air quality and to provide a dedicated platform for air pollution-related grievance redressal. The App provides hourly updated Air Quality Index (AQI) information for more than 289 cities using real-time data from Continuous Ambient Air Quality Monitoring Stations (CAAQMS). It offers an interactive map interface, pollutant-wise sub-indices, a monthly AQI calendar, daily AQI bulletins uploaded at 4:00 PM, and air quality advisories through push notifications. The CAAQMS data is also made available to the public.

The SAMEER App also facilitates lodging of air pollution-related complaints in the Delhi-NCR region, allowing complainants to upload photographs with automatic capture of geo-coordinates to accurately identify the pollution source and enable prompt action by the concerned agencies. Complaints are automatically routed to the relevant implementing agencies based on location. In the Delhi-NCR region, more than 40 implementing agencies are integrated with the App.

State Pollution Control Boards (SPCBs) and Pollution Control Committees (PCCs) may develop and operate their own portals for redressal of grievance similar to such CPGRAMS and SAMEER App in case such system is not available in their respective State/UT.

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